SOFTWARE AS A SERVICE (SAAS) AGREEMENT TEMPLATE+ EULA + SLA

PRICE – EUR 89

TECHNICAL DATA SHEET AND TERMS OF USE

Contract description

This template governs the relationship between a SaaS software provider and its customer, covering the grant of a limited, non-exclusive, non-transferable right to access and use a cloud-based software platform. The template is suitable for any cloud-based SaaS product and is fully customisable to the specific features and use case of the software.

The template covers:

- SaaS License – scope, restrictions, and cloud-only delivery model (no on-premise deployment)
- IP Ownership – full retention of software and IP rights by the Service Provider
- Service Fees & Payment Terms – structured via a dedicated annex (Annex 2, to be completed)
- Customer Duties & Restrictions – prohibited uses, no reverse engineering, no sublicensing
- Warranty & Limitation of Liability – "as is" basis with liability cap
- Service Level Agreement (SLA) – 99% uptime target, service credits regime, excluded downtime
- Term & Termination – 30-day notice termination, insolvency trigger, post-termination obligations
- Confidentiality – mutual obligations with standard carve-outs
- General Provisions – governing law, jurisdiction, one-year limitation period

Includes: Main Agreement + Annex 1 (EULA) + Annex 2 (Service Fees, to be completed) + Annex 3 (SLA).

Recommended use

- Suitable for SaaS providers offering cloud based B2B software on a subscription of license basis.
- The Template is balanced and suitable to be used on both sides.
- We recommend to specifically review the sections on warranty, liability cap, and IP indemnity
- All commercial and technical terms are recommendations only and based on common market practice.

Composition and language	Pages (including annexes) – 10 pages; Language - English
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PREVIEW

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3. ON-PREMISE DEPLOYMENT (OPTIONAL).

The Parties may agree in writing to permit the deployment of the Software on Customer's own infrastructure ("**On-Premise Deployment**"). Any such On-Premise Deployment shall be subject to the following terms and conditions:

(a) Written Addendum. On-Premise Deployment shall only be permitted pursuant to a separate written addendum executed by both Parties ("On-Premise Addendum"), which shall specify the scope of deployment, applicable fees, and any additional technical requirements. In the absence of such an addendum, the cloud-based delivery model set forth in Section 2.1 shall apply exclusively.

(b) Additional Fees. On-Premise Deployment may be subject to additional licensing fees, installation fees, and ongoing support and maintenance charges as set out in the On-Premise Addendum. Such fees shall be payable in accordance with Section 4.

(c) Customer Infrastructure Responsibilities. Where On-Premise Deployment is agreed, Customer shall be solely responsible for: (i) providing and maintaining the hardware, operating systems, network infrastructure, and other technical environment required to run the Software, in accordance with the minimum technical specifications notified by Service Provider from time to time; (ii) ensuring the physical and logical security of its infrastructure and any copy of the Software deployed thereon; (iii) performing regular back-ups of all data processed through the on-premise instance of the Software; and (iv) ensuring that its infrastructure complies with all applicable laws and regulations, including data protection requirements.

(d) Installation and Acceptance. Service Provider shall deliver the Software to Customer in object code form only for the purposes of On-Premise Deployment. Installation shall be carried out [*by Service Provider / by Customer with support from Service Provider*], as specified in the On-Premise Addendum. Customer shall conduct acceptance testing within *[10]* business days of installation and shall notify Service Provider in writing of any material non-conformance. Failure to notify within such period shall be deemed acceptance.
(e) Updates and Maintenance. In the case of On-Premise Deployment, Service Provider shall make available to Customer all updates, patches, and upgrades to the Software that Service Provider makes generally available during the term of this Agreement. Customer shall be responsible for implementing such updates within a reasonable time. Service Provider shall have no liability for any defects, security incidents, or performance issues

arising from Customer's failure to implement updates in a timely manner.

(f) Support. Support services in connection with an On-Premise Deployment shall be provided by Service Provider as set out in the On-Premise Addendum or SLA, as applicable. Where the SLA uptime targets are incompatible with an On-Premise Deployment model, the Parties shall agree on alternative service levels in the On-Premise Addendum.

(g) Audit Rights. Service Provider shall have the right, upon reasonable prior written notice and no more than once per calendar year, to audit Customer's use of the on-premise instance of the Software to verify compliance with this Agreement and the On-Premise Addendum. Any such audit shall be conducted during Customer's normal business hours and shall not unreasonably interfere with Customer's operations.

(h) Termination. Upon expiration or termination of this Agreement or the On-Premise Addendum for any reason, Customer shall promptly: (i) permanently delete or destroy all copies of the Software deployed on its infrastructure; and (ii) provide Service Provider with written certification of such deletion or destruction within *[10]* business days of termination.

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SLA Monitoring and Reporting. Service Provider undertakes to provide Customer with a monthly written report confirming compliance with the Service Levels set out in Annex 3, including the criteria adopted for the resolution of any anomaly identified during the relevant period. In all cases of violation of any SLA metric, Service Provider undertakes to send a written report to Customer within ten (10) days of the violation becoming evident, which must contain at minimum: (i) a description of the SLA violation; (ii) the cause of the violation; (iii) any applicable service credit accrual; (iv) the interventions carried out to prevent or limit the impact of the violation; and (v) the actions taken or proposed to prevent recurrence. Customer shall have the right to terminate this Agreement with immediate effect if Service Provider fails to comply with the SLA in the circumstances described in Annex 3 and fails to remedy such breach within thirty (30) days of written notice from Customer.

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Data Export Window. For a period of thirty (30) days from the effective date of termination, Service Provider shall make the Customer Data residing on the Software platform available for Customer to download and export, in a commonly used machine-readable format (e.g. CSV, XML, or JSON). Service Provider's obligation to make Customer Data available for export is conditional upon full payment of all fees for Services rendered up through the date of termination. Following the expiry of such thirty (30) day period, Service Provider shall

permanently delete all Customer Data without further notice to Customer, unless otherwise required by applicable mandatory law.

No Migration Assistance. For the avoidance of doubt, Service Provider shall have no obligation to provide any migration, transition, data-conversion, integration, consulting or other professional services to Customer or to any successor provider in connection with the termination of this Agreement. Any such assistance, if requested by Customer and agreed by Service Provider, shall be provided (if at all) solely pursuant to a separate written statement of work and at Service Provider's then-current professional services rates.